



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 9, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201908809 regarding Police Officer Joshua Acosta, Tax No. [REDACTED] (DADS No. 2020-22418) and Police Officer Michael DeFilippo, Tax No. [REDACTED] (DADS No. 2020-22417)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Police Officer Acosta and Police Officer DeFilippo committed no misconduct in this case. On the date of the incident, Police Officer Acosta and DeFilippo were dispatched to a call of a Trespass-in-Progress.

Upon arrival on the scene, officers were met by the verified caller who stated that two individuals were trespassing inside of the premises. The caller also claimed to have owned the premises, which the officers verified through their field investigation. Armed with permission from a purported property owner, the officers entered the premises in order to locate the trespassers therein.

After entering the premises, Police Officer Acosta and Police Officer DeFilippo were met with a dangerous interior that appeared to be in dire structural disrepair. The building's interior also had no operating electricity rendering much of it dark. In reasonable fear for their safety, the officers drew their CEWs as they moved through the premises in search of the trespassers. Upon encountering two individuals inside of the premises, officers pointed their CEWs at them and then performed a protective frisk.

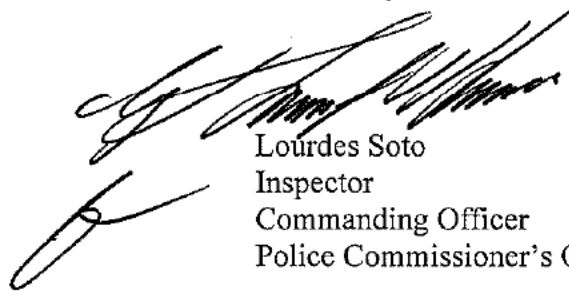
Police Officer Acosta and Police Officer DeFilippo pointing their CEWs at the two individuals is within Department guidelines and does not rise to the level of improper use of force. In fact, Department's Patrol Guide Section 221-08 states that uniformed members of the service may use CEWs in order to "prevent individuals from injuring themselves or others," and that "the nature of the...circumstances" may be considered as a factor for CEW use. Here, the nature of the circumstances alone permits the officers to take out and point their CEWs at the two individuals found trespassing inside of the premises.

Furthermore, the officers performed a protective frisk for their own safety as, based on the totality of the circumstances, the two encountered individuals were inside of a dilapidated building with no identification and no proof of ownership of the premises while the purported owner—who was also the verified caller—waited outside.

Therefore, the Police Commissioner directs that Police Officer Acosta and Police Officer DeFilippo receive No Disciplinary Action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', is written over a horizontal line.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office